
UNITED STATES DISTRICT COURT
WESTERN DISTRICT OF MICHIGAN
SOUTHERN DIVISION

ANDREW J. PIGORS,	Case No. [TO BE ASSIGNED]
Plaintiff,	
v.	APPLICATION TO PROCEED
	IN FORMA PAUPERIS
HON. JENNY L. McNEILL, et al.,	28 USC § 1915
Defendants.	

APPLICATION TO PROCEED IN FORMA PAUPERIS

Plaintiff Andrew J. Pigors hereby applies, pursuant to 28 USC § 1915(a), for leave to commence the above-captioned civil rights action without prepayment of the filing fee. In support of this Application, Plaintiff states as follows:

I. STATUTORY AUTHORITY

1. Title 28 USC § 1915(a)(1) authorizes any court of the United States to permit the commencement, prosecution, or defense of any suit, action, or proceeding without prepayment of fees or security therefor, by a person who submits an affidavit demonstrating inability to pay such fees.
2. The right to proceed IFP in civil rights cases is well-established. *Adkins v E.I. DuPont de Nemours & Co*, 335 US 331, 339-40 (1948) ("We cannot agree with

the court below that one must be absolutely destitute to enjoy the benefit of the statute.").

II. FINANCIAL DECLARATION UNDER PENALTY OF PERJURY

I, Andrew J. Pigors, declare under penalty of perjury under the laws of the United States (28 USC § 1746) as follows:

A. Employment and Income

3. Current employment status: _____
4. Current employer (if any): _____
5. Monthly gross income: \$_____
6. Monthly net income (after taxes and deductions): \$_____
7. Spouse's monthly income (if applicable): \$_____ [] N/A
8. Other sources of income (check all that apply and state monthly amount):

Source	Receiving?	Monthly Amount
Social Security	[] Yes [] No	\$_____
Social Security Disability (..	[] Yes [] No	\$_____
Unemployment compensation	[] Yes [] No	\$_____
Workers' compensation	[] Yes [] No	\$_____
Veterans' benefits	[] Yes [] No	\$_____
Child support received	[] Yes [] No	\$_____
Public assistance (TANF, GA)	[] Yes [] No	\$_____
Supplemental Nutrition (SNAP)	[] Yes [] No	\$_____
Pension/retirement	[] Yes [] No	\$_____
Rental/investment income	[] Yes [] No	\$_____
Other (specify: _____)	[] Yes [] No	\$_____
Total Other Income		\$_____

B. Monthly Expenses

Expense Category	Monthly Amount
Rent or mortgage payment	\$_____
Utilities (electric, gas, water, sewer)	\$_____
Telephone / internet	\$_____

Food and household supplies	\$ _____
Transportation (car payment, gas, insurance..	\$ _____
Medical / dental / health insurance	\$ _____
Court-ordered child support payments	\$ _____
Court-ordered restitution or fines	\$ _____
Clothing	\$ _____
Laundry / personal hygiene	\$ _____
Insurance (life, renter's, other)	\$ _____
Other (specify: _____)	\$ _____
Total Monthly Expenses	\$ _____

C. Assets

9. Cash on hand: \$ _____

10. Bank accounts:

Bank Name	Account Type	Balance
_____	☐ Checking ☐ Savings	\$ _____
_____	☐ Checking ☐ Savings	\$ _____

11. Real property owned:

Property Description	Estimated Value	Amount Owed
_____	\$ _____	\$ _____

12. Motor vehicles:

Year / Make / Model	Estimated Value	Amount Owed
_____	\$ _____	\$ _____

13. Other assets (stocks, bonds, retirement accounts, cryptocurrency, valuable personal property):

Description	Estimated Value
_____	\$ _____
_____	\$ _____

D. Liabilities and Debts

Creditor	Type of Debt	Total Owed	Monthly Payment
_____..	_____	\$ _____	\$ _____
_____..	_____	\$ _____	\$ _____

_____..	_____	\$ _____	\$ _____
_____..	_____	\$ _____	\$ _____
Total Liabilities		\$ _____	\$ _____

E. Public Benefits Currently Received

14. Check all that apply:

- ☐ Supplemental Security Income (SSI)
- ☐ Temporary Assistance for Needy Families (TANF)
- ☐ Supplemental Nutrition Assistance Program (SNAP / Food Stamps)
- ☐ Medicaid / Healthy Michigan Plan
- ☐ Housing assistance (Section 8 / HUD)
- ☐ Low Income Home Energy Assistance (LIHEAP)
- ☐ WIC (Women, Infants, and Children)
- ☐ Free/reduced school lunch (for dependents)
- ☐ Other: _____
- ☐ None of the above

F. Dependents

15. Number of dependents: _____

16. List all dependents:

Name	Relationship	Age	Living with You?
L.D.W.	Daughter	3	☐ Yes ☒ No -- cu..
_____..	_____	___	☐ Yes ☐ No

G. Prior Incarceration / Financial Impact

17. Have you been incarcerated within the last 12 months? ☐ Yes ☐ No

18. If yes, has incarceration affected your ability to earn income or maintain employment? _____

III. STATEMENT OF INABILITY TO PAY

19. The filing fee for a new civil complaint in the Western District of Michigan is \$405.00 (comprising a \$350.00 statutory filing fee and a \$55.00 administrative fee).
 20. Based on the financial information stated above, I am unable to prepay the filing fee or give security therefor without depriving myself and my dependents of the necessities of life.
 21. Contributing factors to my financial inability include:
 - (a) Court-ordered child support obligations imposed by the state court;
 - (b) Costs incurred in defending against unconstitutional orders in state court (certified copies, transcripts, filing fees, postage);
 - (c) Loss of income and employment disruption resulting from the underlying state proceedings;
 - (d) Financial strain caused by 571+ days of litigation;
 - (e) Inability to retain counsel due to financial constraints.
 22. I have attempted to retain counsel for this federal action and have been unable to do so because:
 - (a) I cannot afford attorney's fees or retainer deposits;
 - (b) The complexity of the case (multiple defendants, constitutional issues, immunity defenses) has made it difficult to secure pro bono representation;
 - (c) Multiple legal aid organizations have been contacted without success.
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IV. NATURE OF THE ACTION

23. This is a civil rights action under 42 USC §§ 1983, 1985, and 1986 alleging deprivation of fundamental constitutional rights under the First and Fourteenth Amendments to the United States Constitution.
24. The action is not frivolous and is based on:
 - (a) A documented pattern of 24 of 55 orders (44%) entered on an ex parte basis without

notice;

- (b) Complete denial of all parenting time for 571+ consecutive days;
- (c) Five ex parte orders entered on a single day (August 8, 2025) without notice;
- (d) No evidentiary hearing conducted in over two years of proceedings;
- (e) Six pending motions dismissed without adjudication;
- (f) First Amendment retaliation for exercising the right to petition;
- (g) Statistical and documentary evidence supporting each claim.

25. The action is not brought in bad faith. It seeks vindication of fundamental constitutional rights recognized by the United States Supreme Court.

26. The action is not barred by the statute of limitations. SOL audit confirms all federal claims are within the 3-year limitations period, with 1,047-1,094 days remaining (risk level: GREEN on all counts).

V. PRIOR IFP APPLICATIONS

27. I ☐ have / ☐ have not previously applied for IFP status in any federal court.

28. If yes: Court: _____ | Case No.: _____ | Result:

VI. PRIOR FEDERAL LITIGATION

29. I ☐ have / ☐ have not previously filed any civil action or appeal in any federal court.

30. If yes, list all prior federal cases:

Case Name	Court	Case No.	Status/Outcome	IFP?
_____	_____	_____	_____	☐ Y ☐ N

VII. THREE-STRIKES CERTIFICATION (28 USC § 1915(g))

31. I certify that I have not, on three or more prior occasions while incarcerated or detained, brought an action or appeal in a federal court that was dismissed as frivolous, malicious, or for failure to state a claim upon which relief may be granted.
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VIII. REQUEST FOR RELIEF

WHEREFORE, Plaintiff respectfully requests that this Court:

1. Grant this Application to Proceed In Forma Pauperis pursuant to 28 USC § 1915(a).
 2. Waive the \$405.00 filing fee (\$350 filing + \$55 administrative).
 3. Order the United States Marshals Service to effect service of process upon all Defendants at the expense of the United States, pursuant to 28 USC § 1915(d) and FRCP 4(c)(3).
 4. Permit Plaintiff to prosecute this action without prepayment of fees or costs.
 5. Waive costs associated with service of process, including the USM-285 process fee.
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IX. DECLARATION AND SIGNATURE

I declare under penalty of perjury under the laws of the United States of America (28 USC § 1746) that the foregoing statements regarding my financial condition are true and correct to the best of my knowledge and belief.

I understand that a false statement or misrepresentation may subject me to sanctions, including dismissal of this action and possible criminal prosecution under 18 USC § 1001.

Executed on: _____

Andrew J. Pigors

Plaintiff, Pro Se

[ADDRESS LINE 1]

[ADDRESS LINE 2]

[CITY, STATE ZIP]

[TELEPHONE]

[EMAIL]

X. SUPPORTING DOCUMENTATION CHECKLIST

Attach the following documents to this Application (check each item attached):

Required

- ☐ Most recent federal tax return (or signed statement that no return was filed)
- ☐ Pay stubs -- last 3 months (or signed statement of unemployment)
- ☐ Bank statements -- last 3 months, all accounts (checking, savings, any other)
- ☐ Public benefit award letters (SSI, TANF, SNAP, Medicaid, etc.)

Recommended

- ☐ Child support order -- showing current payment obligations
- ☐ Lease / rental agreement or mortgage statement
- ☐ Utility bills -- most recent (electric, gas, water)
- ☐ Proof of other debts -- credit card statements, medical bills, loans
- ☐ Documentation of legal expenses incurred in state court proceedings
- ☐ Proof of inability to retain counsel -- rejection letters from attorneys/legal aid

If Applicable

- ☐ Unemployment benefit statements
- ☐ Social Security benefit statements

- ☐ Documentation of incarceration and financial impact
- ☐ Medical records -- if medical condition affects earning capacity

NOTE TO PLAINTIFF: Complete ALL blanks with actual financial data. Attach all available supporting documentation. The Court may request additional information -- respond promptly. Incomplete applications may be denied.

NOTE: Under WDMI practice, the Court typically rules on IFP applications within 14-30 days. If denied, the Court will set a deadline to pay the filing fee.

Prepared: 2026-03-04 | Andrew J. Pigors, Pro Se

IFP Application -- FINAL VERSION